VERŻJONI ELETTRONIKA

L.N. 68 of 2020

DUTY ON DOCUMENTS AND TRANSFERS ACT (CAP. 364)

Adaptation of Subsidiary Legislation (Duty on Documents and Transfers Act) Order, 2020

IN EXERCISE of the powers conferred by articles 12, 22, 22A and 23 of the Duty on Documents and Transfers Act, the Minister for Finance and Financial Services, has made the following Order:-

Citation.

1. The title of this Order is the Adaptation of Subsidiary Legislation (Duty on Documents and Transfers Act) Order, 2020.

Scope. Cap. 364.

2. This Order amends subsidiary legislation enacted in terms of the Duty on Documents and Transfers Act, hereinafter referred to as "the principal Act".

3. Nothing in this Order shall affect the validity of anything heretofore lawfully done, or any right, obligation or liability heretofore acquired, accrued or incurred, under any one (1) of the enactments mentioned in this Order.

Part I

Amends the Policies of Insurance (Compounding of Duty) Regulations. S.L. 364.02.

4. This Part amends the Policies of Insurance (Compounding of Duty) Regulations and it shall be read and construed as one with the Policies of Insurance (Compounding of Duty) Regulations, hereinafter in this Part referred to as "the principal regulations".

Amends regulation 4 of the principal regulations.

5. In regulation 4 of the principal regulations, the words "shall be liable to a penalty not exceeding one thousand and one hundred and sixty-four euro and sixty-nine cents (1,164.69)" shall be substituted by the words "shall be liable to a penalty not exceeding one thousand and two hundred euro (€1,200.00) and to interest at the rate as prescribed by the Minister on any duty assessed by the Commissioner".

Part II

Amends the Duty on Documents and Transfers Rules. S.L. 364.06.

6. This Part amends the Duty on Documents and Transfers Rules, and it shall be read and construed as one with the Duty on Documents and Transfers Rules, hereinafter in this Part referred to as "the principal rules".

Amends rule 2 of the principal rules.

7. Rule 2 of the principal rules, shall be amended as follows:

(a) sub-rule (2) thereof, shall be deleted; and

(b) in sub-rule (5) thereof, the words "and to which the First Schedule refers" shall be substituted by the words "and in a format as provided by the Commissioner for these purposes".

Amends rule 3 of the principal rules.

8. Rule 3 of the principal rules, shall be amended as follows:

(a) sub-rule (1) thereof, shall be substituted by the following:

"Value of property. Cap. 364.

(1) (a) The value of any property subject to duty under the Duty on Documents and Transfers Act, transferred *inter vivos* or transmitted *causa mortis*, shall be the value of such property on the date of the said transfer *inter vivos* or on the date of death of the person from whom the transfer *causa mortis* originates, as the case may be, (hereinafter referred to as "the relevant date") and such value shall be established in accordance with the following provisions:

Provided that where a notice of a promise of sale is given according to article 3(6) of the Duty on Documents and Transfers Act, and the promise of sale is made for a period not exceeding one (1) year, or three (3) years in the case of a property consisting of a unit in a project acquired on plan, the relevant date shall be the date of the promise of sale:

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Provided further that where improvements are made between the date of the promise of sale and the date of transfer, the relevant date shall be the date of transfer;

(b) The provisions of this sub-rule shall apply from the 15th October 2019."; and

(b) in sub-rule (3) thereof, the words "Second Schedule", shall be substituted by the word "Schedule", wherever they occur.

Amends rule 8 of the principal rules.

9. Rule 8 of the principal rules, shall be amended as follows:

(a) sub-rule (2) thereof, shall be substituted by the

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following:

"(2) The notice shall be made on the forms or means as supplied by the Commissioner for this purpose and shall contain the information required in respect of a deed of transfer of any immovable property and in respect of a deed containing a declaration made in connection with article 33 of the Duty on Documents and Transfers Act."; and

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(b) sub-rule (4) thereof, shall be substituted by the following:

"(4) The transferee in any transfer of residential property shall submit to the Commissioner the information required on the forms or means as supplied by the Commissioner, duly filled and certified by a perit in possession of a warrant issued under article 5 of the Periti Act, and this information shall be attached to the notice supplied by the Commissioner for this purpose as mentioned in article 51 of the Duty on Documents and Transfers Act.".

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10. In sub-rule (3) of rule 11 of the principal rules, the words "made on the form prescribed in the Sixth Schedule" shall be substituted by the words "made on the forms or means as supplied by the Commissioner for this purpose".

Amends rule 11 of the principal rules.

11. Rule 12 of the principal rules, shall be amended as follows:

Amends rule 12 of the principal rules.

(a) in sub-rule (5) thereof, the words "on the form prescribed in the Fifth Schedule" shall be substituted by the words "on the forms or means as supplied by the Commissioner for this purpose"; and

(b) in sub-rule (8) thereof, the words "on the form prescribed in the Seventh Schedule" shall be substituted by the words "on the forms or means as supplied by the Commissioner for this purpose".

12. Immediately after rule 12 of the principal rules, there shall be added the following new rule:

Adds new rule to the principal rules.

"Registration.

13. Persons who are subject to duty in terms of the provisions of the Duty on Documents and Transfers Act shall be registered with the Commissioner.".

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Amends the Schedules to the principal rules.

13. The Schedules to the principal rules, shall be amended as follows:

(a) with the exception of the Second Schedule thereof, all the other Schedules annexed to the principal rules shall be deleted; and

(b) in the title of the Second Schedule thereof, the words "Second Schedule" shall be substituted by the word "Schedule".

Part III

Repeals subsidiary legislation.

14. The following subsidiary legislation are hereby repealed:

S.L. 364.03. (a) Use of Franking Machines Regulations;

S.L. 364.04. (b) Duty on Cheque Forms Regulations;

S.L. 364.05. (c) Appeals (Board of Special Commissioners for Duty on Documents and Transfers) Rules; and

S.L. 364.08. (d) Banking Credit Cards (Compounding of Duty) Regulations.

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